

BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

RE: Mental Health Counselor License of MICHELLE BANKS License No. 091068 Respondent	CASE NO. 21-0014 SETTLEMENT AGREEMENT AND FINAL ORDER
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Pursuant to Iowa Code sections 17A.12(5) and 272C.3(4), and 645 IAC chapter 12, the Iowa Board of Behavioral Science (“Board”) and Michelle Banks (“Respondent”) enter into the following Settlement Agreement and Final Order (“Order”) to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. The Board filed a Notice of Hearing, Statement of Charges, and Emergency Adjudicative Order on September 9, 2021.
2. The Board has jurisdiction over the parties and the subject matter of this proceeding.
3. Respondent acknowledges that the allegations in the Statement of Charges, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
4. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to hearing before the Board on the charges, but Respondent waives the right to hearing and all attendant rights, including the right to appeal or seek judicial review of the Board’s actions, by freely and voluntarily entering into this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
5. Respondent acknowledges that she has the right to be represented by counsel on this matter.
6. Respondent agrees that the State’s counsel may present this Order to the Board and may have *ex parte* communications with the Board while presenting it.
7. This Order is subject to approval by a majority of the full Board. If the Board does not approve this Order, it shall be of no force or effect to either party, and shall not be admissible for any purpose in further proceedings in this matter. If the Board approves this Order, it shall be the full and final resolution of this matter.
8. This Order shall be part of Respondent’s permanent record and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.

9. Respondent understands the Board is required by federal law to report any adverse action to the National Practitioner Data Bank.

10. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.

11. The Board's approval of this Order shall constitute a **FINAL ORDER** of the Board.

IT IS THEREFORE ORDERED:

12. Respondent agrees to **VOLUNTARILY SURRENDER** her mental health counselor license to resolve this matter. This voluntary surrender is considered discipline and, when accepted by the Board, has the same force and effect as an order of revocation under 645 IAC 12.1(5).

13. Respondent agrees not to use any words or titles which imply or represent that she is a licensed mental health counselor in the State of Iowa, or to otherwise hold herself out to the public as a licensed mental health counselor in the State of Iowa, or to engage in the practice of mental health counseling for which a license is required in the State of Iowa, unless her license is reinstated. This Order does not preclude Respondent from working in a position that does not require a mental health license.

14. Respondent shall immediately return her mental health counselor license to the Board.

15. Any request for reinstatement shall be governed by 645 IAC 11.31 and 31.17. Respondent must wait at least three (3) years from the date of this Order before applying for reinstatement. Respondent's license shall not be reinstated except upon a showing by Respondent that the basis for the surrender of her license no longer exists, and that it is in the public interest for the license to be reinstated. Respondent understands that if an initial request for reinstatement is denied, the Board may establish requirements that must be met prior to considering a subsequent request. If Respondent's license is reinstated, Respondent understands it may be placed on probation, or otherwise restricted, and that the length of probation and the conditions of probation, or the terms of any restriction, will be established through further order of the Board in conjunction with an order granting reinstatement of Respondent's license.

16. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 147, 154D, and 272C and 645 IAC 13 and 33.

November 9, 2021

Date



MICHELLE BANKS
Respondent

This Settlement Agreement and Final Order is approved by the Iowa Board of Behavioral Science on December 9, 2021.

/s/ Tony Alden

Tony Alden, Board Executive
Iowa Board of Behavioral Science